

24STCV32554 24STCV32554

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Case Number: 24STCV32554 Hearing Date: July 28, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFFS'

ATTORNEY FEES, COURT COSTS, AND LITIGATION EXPENSES

Moving Party: Plaintiffs, Samuel Sufrin and Century Quality
Management, Inc.

Opposing Party: Defendant, Genesis Motor America LLC

Notice: OK

Background Facts

Plaintiffs brought this

Song-Beverly Warranty Act action against Defendant Genesis Motor America LLC

and Does 1 to 50, in December of 2024 and settled with Defendant in May 2026.

(See May 6, 2026, Notice of Settlement) Plaintiffs seek attorney's fees

and costs as prevailing buyers pursuant to Civil Code section 1794(d).

Plaintiffs also contend they are entitled to recover post-offer costs pursuant
to Code of Civil Procedure section 998.

Motion for

Attorneys' Fees and Costs

a.

Legal Standard on Motion

Plaintiffs obtained a settlement

providing relief on their Song-Beverly claims. A plaintiff who obtains such

relief through settlement is the prevailing buyer within the meaning of Civil Code section 1794(d). (Duff v. Jaguar Land Rover North America, LLC (2022) 74 Cal.App.5th 491, 502.) Plaintiffs are therefore entitled to recover reasonable attorney's fees and costs.

The Court begins this inquiry “with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (PLCM Group).) From there, the “lodestar figure may then be adjusted [according to a multiplier enhancement] based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid.) Relevant multiplier factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

b. Discussion

The parties before the Court dispute whether Plaintiffs are the prevailing parties for purposes of this motion and whether the \$27,359.95 sought in fees and costs by Plaintiffs—\$23,767.50 in fees, a 0.1 multiplier of \$2,376.75, and costs of \$1,215.70—are reasonable.

After review, the Court finds it in favor of Plaintiffs, but only in part.

The Court first determines that Plaintiffs are the prevailing party under Code of Civil Procedure section 1032 and consistent with Duff v. Jaguar Land Rover North America, LLC (2022) 74 Cal.App.5th 491, 502.

Although counsel requests hourly rates of \$575 and \$375, the Court finds those rates exceed the reasonable market rates for attorneys of comparable experience litigating routine Song-Beverly actions in Los Angeles County. Based on the Court's familiarity with prevailing market rates and the nature of this litigation, reasonable hourly rates are \$500 for Mr. Kohen and \$300 for Ms. Artolozaga. (See Motion, Kohen Decl., Ex. 1 [chart of hours and fee rates claimed].)

The Court declines to apply a positive multiplier. Although counsel accepted the matter on a contingent basis, the litigation did not present novel or particularly difficult legal issues, did not require exceptional skill beyond that expected in Song-Beverly litigation, and does not appear to have significantly precluded counsel from accepting other employment. The lodestar adequately compensates counsel for the work performed.

Costs of \$1,215.70 are reasonable and properly supported.

Relief is thus resolved in the amount of \$21,765.70.

c. Conclusion

Plaintiffs Samuel Sufrin and Century Quality Management, Inc.'s motion for attorneys' fees and costs is GRANTED, in part, in the amount of \$21,765.70.

Plaintiffs Samuel Sufrin and Century Quality Management, Inc. are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.